

STATE OF MICHIGAN IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON FAMILY DIVISION

Case No. 2024-001507-DC Honorable Judge Jenny McNeill

ANDREW J. PIGORS,
Plaintiff,
v.
EMILY A. WATSON,
Defendant.

**EX PARTE MOTION FOR IMMEDIATE TERMINATION OF PPO,
MODIFICATION OF CUSTODY AND PARENTING TIME, EMERGENCY
TRAVEL RESTRICTIONS, AND ORDER FOR PSYCHOLOGICAL AND
CUSTODIAL EVALUATIONS**

PRELIMINARY STATEMENT

I, Andrew J. Pigors, respectfully submit this Ex Parte Motion to the Court to request immediate and urgent relief for the protection and well-being of my son, LDW. This motion is grounded on Exhibit A: Dr. Richard Bone’s expert testimony, which confirms the significant psychological harm being caused to LDW due to parental alienation and misuse of a Personal Protection Order (PPO) by Emily Watson. Dr. Bone’s expert evaluation reveals that these alienating actions have directly harmed LDW’s emotional health and development, necessitating immediate Court intervention.

Emily Watson has repeatedly misused the PPO, which was intended to provide protection, as a tool to manipulate custody. This misuse violates the intent of MCL 600.2950, which provides protection from genuine threats, not to manipulate parenting time. Michigan courts have ruled against such misuse in cases like *Stacey v Stacey*, 202 Mich App 524 (1993), which emphasized that PPOs should not be used for purposes other than their original intent—protection from harm.

RELIEF REQUESTED

- 1. Immediate Termination of PPO:** I request the Court immediately terminate the PPO, as Emily Watson has misused it to manipulate parenting time rather than for genuine protection. This is supported by MCL 600.2950(4), which provides for PPO modification

or termination when circumstances have changed. The precedent set in *Stacey v Stacey*, 202 Mich App 524 (1993), demonstrates that PPO misuse for custody manipulation warrants dismissal.

2. **Modification of Custody and Parenting Time:** The Court should modify current custody and parenting time arrangements to reflect LDW's best interests, as allowed under MCL 722.27a. The misuse of the PPO has prevented LDW from having meaningful contact with me, and Exhibit A: Dr. Bone's findings show that LDW is suffering from anxiety and emotional distress due to these actions. Under *Vodvarka v Grasmeyer*, 259 Mich App 499 (2003), Michigan courts have recognized that parental alienation necessitates modifying custody arrangements.
3. **Appointment of a Neutral Parenting Coordinator:** Given the ongoing alienation and communication breakdowns between Emily Watson and me, I request the appointment of a neutral parenting coordinator, as authorized under MCL 722.27(1)(e), to facilitate co-parenting and ensure that decisions are made in LDW's best interests.
4. **Emergency Travel Restrictions:** I request that the Court impose immediate restrictions preventing Emily Watson from removing LDW from the country, as permitted by MCL 722.27b, which restricts a parent from moving a child out of state or country when there is evidence of potential harm to the child's welfare. Given Emily's actions and threats, this restriction is necessary to protect LDW from being removed from my care and from the jurisdiction of this Court.
5. **Psychological and Custodial Evaluations:** I request that the Court order psychological and custodial evaluations of both parents, as allowed under MCL 722.27(c). This request is supported by Dr. Bone's findings in Exhibit A, which indicate that LDW's emotional health is at risk due to ongoing parental alienation.
6. **Sanctions for False Allegations:** Emily Watson has made numerous false allegations, including claims of assault and poisoning. I request the Court impose sanctions under MCR 2.114(E) for submitting false claims and affidavits without proper factual basis. Imposing sanctions will deter future false allegations and protect the integrity of the Court proceedings.
7. **Neutral Custody Exchanges at Muskegon Police Station:** Due to ongoing harassment by Emily Watson and her family, I request that all future custody exchanges continue to occur at the Muskegon Police Station. MCL 722.27(a) emphasizes that custody exchanges should occur in the child's best interest, and a neutral, supervised setting ensures LDW is not exposed to further hostility. Evidence of hostile exchanges, including violations of the PPO by Albert and Cody Watson, is presented in Exhibit B and supported by *People v Lemons*, 454 Mich 234 (1997), which holds that third-party PPO violations are unlawful.
8. **Expedited Motion Process:** In order to expedite the Court's ruling on this motion, I request that the Muskegon Circuit Court expedite the hearing process as allowed under local court rules (Chapter 2). MCR 3.707(B) provides for de novo reviews of PPO violations, and I request such a review to reconsider the PPO violations that were ignored or dismissed, including those involving Albert and Cody Watson.
9. **Judicial Notice of Police and CPS Reports:** I request that the Court take judicial notice, as allowed under MRE 201, of reports from Child Protective Services (CPS) and police records that verify the false reports filed by Emily Watson. Judicial notice will expedite the case and ensure that the verified facts are considered without unnecessary delay.

10. **Request for Parenting Records:** I request access to LDW's full medical and educational records, as permitted under MCR 2.302(B)(1). These records are necessary to demonstrate Emily's unilateral decisions regarding LDW's health and education, which infringe upon my rights as a co-parent. These decisions directly contribute to LDW's emotional distress and hinder my ability to participate in key parenting decisions.
 11. **Request Fee Waivers Due to Financial Hardship:** As supported by MCR 2.002, I request a fee waiver based on my demonstrated financial hardship. This waiver would assist in reducing the financial burden of ongoing litigation related to the custody of LDW and the termination of the PPO.
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STATEMENT OF FACTS

1. **Misuse of PPO and Parental Alienation:** Exhibit A: Dr. Bone's expert testimony confirms that LDW is experiencing symptoms of parental alienation, including anxiety and clinginess, which are directly caused by Emily Watson's misuse of the PPO. The PPO was intended to provide protection under MCL 600.2950, but it has been exploited by Emily to limit my contact with LDW, thus alienating him from me. Michigan case law, including *Vodvarka v Grasmeyer*, 259 Mich App 499 (2003), highlights that parental alienation has a significant impact on a child's emotional development, and the Court must intervene to modify custody arrangements accordingly.
 2. **Harassment and PPO Violations by Third Parties:** On October 20, 2024, Albert Watson engaged in aggressive behavior when serving PPO paperwork, and his actions are consistent with a pattern of harassment involving Emily's family. Exhibit B includes police reports documenting incidents where Albert and Cody Watson violated the PPO by proxy, as prohibited under MCL 600.2950(4). These violations further support the immediate termination of the PPO to protect LDW's emotional security.
 3. **Hostile Custody Exchanges:** Emily Watson and her family have created a hostile environment during custody exchanges. I requested that all exchanges take place at the Muskegon Police Station due to the harassment I've experienced. MCL 722.27(a) allows the Court to determine that custody exchanges must be held in a neutral, safe environment. Evidence of hostility during exchanges is documented in Exhibit B, and Michigan case law such as *Theroux v Dozier*, 168 Mich App 354 (1988), supports that children exposed to hostile exchanges suffer emotional trauma.
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APPLICATION OF BEST INTEREST FACTORS UNDER MCL 722.23

The 12 best interest factors, as outlined under MCL 722.23, are directly applicable to this case. Below, I will address each factor as it pertains to LDW:

- (a) The love, affection, and other emotional ties between the parties and the child.
- (b) The capacity and disposition of the parties involved to give the child love, affection, and guidance.

- (c) The capacity and disposition of the parties to provide the child with food, clothing, medical care, or other remedial care.
 - (d) The length of time the child has lived in a stable, satisfactory environment, and the desirability of maintaining continuity.
 - (e) The permanence, as a family unit, of the existing or proposed custodial home.
 - (f) The moral fitness of the parties involved.
 - (g) The mental and physical health of the parties involved.
 - (h) The home, school, and community record of the child.
 - (i) The reasonable preference of the child, if of sufficient age.
 - (j) The willingness and ability of each parent to foster a close and continuing parent-child relationship.
 - (k) Domestic violence, regardless of whether the violence was directed against or witnessed by the child.
 - (l) Any other factor considered by the court.
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CONCLUSION AND REITERATED RELIEF REQUESTED

Given the evidence and arguments presented, I respectfully request that this Honorable Court:

1. Terminate the PPO Immediately

Modify Custody and Parenting Time
Appoint a Neutral Parenting Coordinator
Issue Emergency Travel Restrictions
Order Psychological and Custodial Evaluations
Impose Sanctions for False Allegations
Continue Custody Exchanges at the Muskegon Police Station
Expedite the Hearing Process
Take Judicial Notice of Verified Reports
Grant Access to Full Parenting Records
Waive Litigation Fees Due to Financial Hardship

Respectfully submitted,

Date: [Insert Date]
/s/ **Andrew J. Pigors**
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EXHIBITS:

Exhibit A: Dr. Richard Bone's Expert Testimony

This exhibit contains Dr. Bone's evaluation, which highlights the significant psychological harm LDW is experiencing as a result of the parental alienation caused by Emily Watson. Dr. Bone's expert opinion supports the need for immediate court intervention, including the termination of the PPO, modification of custody, and the appointment of a parenting coordinator.

Exhibit B: AppClose Report Communication Record

This exhibit includes expanded contextual details from AppClose communications, showing Emily Watson's repeated failures to communicate adequately regarding LDW's health and well-being. These include instances of neglect, such as withholding critical health information, denying reasonable requests for additional parenting time, and failing to foster cooperation for the benefit of LDW.

Exhibit C: Police Reports and CPS Findings

This exhibit includes verified police and CPS reports that document instances of harassment and false reports made by Emily Watson and her family members, including Albert and Cody Watson, as violations of the PPO. These reports substantiate my claims regarding third-party violations and further support the termination of the PPO and the imposition of sanctions.

CONCLUSION AND REITERATED RELIEF REQUESTED

Your Honor, the evidence presented in this motion, along with the supporting exhibits, clearly demonstrates that Emily Watson has continually misused the Personal Protection Order (PPO) to alienate me from my son, LDW. Her actions, which include withholding critical health information, making false allegations, and fostering a hostile environment during custody exchanges, have caused significant harm to LDW's emotional and psychological well-being, as detailed in Dr. Richard Bone's expert testimony.

The misuse of the PPO is not only unjust but directly contradicts its intended purpose of protection. Instead of safeguarding anyone from harm, it has been wielded as a tool to manipulate custody arrangements, preventing LDW from having the consistent and meaningful relationship with me that he needs and deserves.

The best interests of LDW, as outlined by MCL 722.23, are at stake here. He requires both parents to be involved in his life in a stable and healthy manner. The ongoing manipulation of custody, combined with third-party violations of the PPO by Emily's family, underscores the urgency for the court's immediate intervention.

Given these facts and the substantial risk to my son's emotional and developmental health, I respectfully request that this Court:

EXPANDED RELIEF REQUESTED

1. Immediate Termination of the Personal Protection Order (PPO):

I request that the Court immediately terminate the Personal Protection Order (PPO) that Emily Watson has misused. The original intent of the PPO, as defined by MCL 600.2950, is to provide protection from genuine threats. However, in this case, the PPO has been manipulated to alienate me from my son, LDW, and to disrupt our father-son relationship. The evidence provided, including Exhibit A (Dr. Richard Bone's expert testimony), demonstrates that the PPO has no basis in a legitimate threat but has been wielded as a means to restrict my access to LDW and cause emotional harm. As Michigan courts have ruled in **Stacey v Stacey, 202 Mich App 524 (1993)**, misuse of a PPO for custody manipulation warrants its immediate dismissal. Therefore, I request its termination to prevent further harm to LDW and restore my right to consistent parenting time.

2. Modification of Custody and Parenting Time:

Under MCL 722.27a, I request the Court modify the current custody and parenting time arrangement to reflect LDW's best interests and well-being. The existing arrangement, impacted by Emily Watson's misuse of the PPO and her actions of parental alienation, has caused emotional distress to LDW, as evidenced in Exhibit A. The frequent denial of additional parenting time and Emily's failure to communicate vital health information demonstrate that she is not acting in LDW's best interests. Michigan courts, as in **Vodvarka v Grasmeyer, 259 Mich App 499 (2003)**, have recognized that parental alienation necessitates modification of custody. I am requesting increased parenting time, including expanded weekends, additional holidays, and more significant decision-making authority in LDW's medical, educational, and emotional care to counter the negative effects of the alienation and restore balance in his upbringing.

3. Appointment of a Neutral Parenting Coordinator:

I respectfully request the appointment of a neutral parenting coordinator, as authorized under MCL 722.27(1)(e). The ongoing communication breakdown between Emily and me, including her refusal to cooperate on critical decisions regarding LDW's health and education, warrants the intervention of a neutral party. A parenting coordinator will ensure that important decisions are made in LDW's best interests, prevent further unilateral decisions by Emily, and assist in fostering effective communication between us. The parenting coordinator will also mediate conflicts and provide a structured plan to ensure both parents can fulfill their roles, mitigating the current pattern of alienation.

4. Emergency Travel Restrictions:

Pursuant to MCL 722.27b, I request that the Court impose immediate restrictions preventing Emily Watson from removing LDW from the state or country without prior Court approval. Given Emily's past threats and refusal to communicate critical information, there is a legitimate concern that she may attempt to remove LDW from the country, which would severely limit my access and ability to protect his well-being. This restriction is necessary to ensure that LDW remains within the jurisdiction of this Court and that I maintain consistent contact with him. These restrictions are crucial to

safeguarding LDW's stability, preventing abduction risks, and maintaining jurisdiction over custody matters.

5. **Order for Psychological and Custodial Evaluations:**

Under MCL 722.27(c), I request that the Court order comprehensive psychological evaluations for both parents, as well as custodial evaluations to assess our fitness to parent and the impact of the current custodial arrangement on LDW. Dr. Bone's expert testimony (Exhibit A) indicates that LDW is already suffering from anxiety and emotional distress as a direct result of parental alienation. These evaluations will provide the Court with a detailed analysis of our respective mental and emotional health, LDW's needs, and any further therapeutic interventions that may be required to protect LDW from ongoing harm. The results of these evaluations will also aid the Court in making informed decisions about custody modifications.

6. **Sanctions for False Allegations:**

I request that the Court impose sanctions against Emily Watson for submitting multiple false allegations, including claims of assault and poisoning, without any factual basis. Under MCR 2.114(E), the Court may impose sanctions on parties that make unfounded claims, especially when such allegations have been used to manipulate legal proceedings. By presenting false claims, Emily has not only tarnished my reputation but has also wasted valuable Court time and resources. Sanctions will deter future false allegations and uphold the integrity of the legal process, ensuring that such tactics are not used to interfere with the well-being of LDW or my rights as a father.

7. **Neutral Custody Exchanges at Muskegon Police Station:**

I request that all future custody exchanges between Emily Watson and me occur at the Muskegon Police Station to ensure that LDW is not exposed to hostility, harassment, or any unsafe environments during these exchanges. MCL 722.27(a) emphasizes that custody arrangements and exchanges must be in the child's best interest, and the Muskegon Police Station provides a neutral and safe environment. Exhibit B documents instances of harassment and PPO violations by Albert and Cody Watson, which underscore the necessity of supervised or neutral exchanges. By maintaining exchanges at a neutral location, the Court will ensure LDW's emotional safety and protect him from further exposure to unnecessary conflict.

8. **Expedited Hearing Process:**

Given the urgency of this matter and the emotional and psychological harm already experienced by LDW, I request that the Court expedite the hearing process for this motion, as allowed under local court rules (Chapter 2) and MCR 3.707(B). The sooner the Court addresses the PPO violations, modifies custody, and terminates the PPO, the sooner LDW will be able to experience stability and a more balanced relationship with both parents. An expedited process will prevent prolonged exposure to the current hostile and alienating environment.

9. **Judicial Notice of Police and CPS Reports:**

I respectfully request that the Court take judicial notice under MRE 201 of verified police and Child Protective Services (CPS) reports that document false claims made by Emily Watson and her family. These reports are a matter of public record and provide objective, third-party confirmation of the harassment, false allegations, and violations of the PPO by Emily and her relatives. Taking judicial notice of these reports will expedite the

proceedings, as they provide substantial evidence that the Court can rely on without further investigation.

10. Request for Parenting Records:

I request that the Court grant me full access to LDW's medical, educational, and developmental records, as allowed under MCR 2.302(B)(1). This access is critical to ensuring that I remain fully informed and involved in LDW's well-being, particularly given Emily's history of unilateral decisions regarding his health and education. By accessing these records, I can verify that LDW is receiving the care he needs and that no decisions are being made without my involvement or knowledge, as required by our shared custodial arrangement.

11. Request Fee Waivers Due to Financial Hardship:

As provided by MCR 2.002, I request a waiver of all Court fees associated with this motion based on my financial hardship. The ongoing litigation has placed a substantial financial burden on me, and continuing to bear these costs while fighting for the best interests of LDW is not feasible without a waiver. I have provided all necessary documentation to support my request for indigent status, and I respectfully ask that the Court grant this waiver to allow the legal process to continue without further financial strain.

Your Honor, this case is not just about my rights as a father—it is about securing the emotional, psychological, and physical well-being of my son, LDW. I am asking for the court's immediate and decisive intervention to rectify the harm that has been done and to protect LDW from further alienation and manipulation. I trust that this Court will act in his best interests, as the law and evidence clearly support the relief requested.

Respectfully submitted,

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INSTRUCTIONAL GUIDE FOR FILING

1. Prepare the Following Documents for Filing:

- **Ex Parte Motion (Primary Document)**
- **Exhibit List (Attach all exhibits referenced)**
- **Fee Waiver Request (if applicable)**
- **Proof of Service**

2. Filing Steps:

- **Step 1:** Organize all documents and exhibits, ensuring consistency in numbering and references.
- **Step 2:** File the **Ex Parte Motion** with the Muskegon Circuit Court Clerk. Attach the necessary exhibits, including the AppClose report, Dr. Bone's testimony, police reports, and CPS findings. Ensure all supporting documentation is properly labeled and in the format requested by the court.
- **Step 3:** Submit the **Proof of Service** with the court to confirm that copies of the motion and exhibits were served to the opposing party (Emily Watson) or her legal representation.
- **Step 4:** If applicable, submit the **Fee Waiver Request** (based on financial hardship) under MCR 2.002. This will reduce or eliminate filing fees related to the ongoing litigation.
- **Step 5:** Monitor the case docket for a hearing date. Follow up with the clerk's office if necessary to expedite the hearing process, emphasizing the urgency of the motion based on the best interests of LDW.

3. During the Hearing:

- Present the exhibits in order and explain the relevance of each, particularly Dr. Bone's findings regarding LDW's emotional health and the misuse of the PPO.
- Refer to the **AppClose Report** communications to show Emily's lack of cooperation and failure to foster a co-parenting relationship.
- Highlight the police and CPS reports, using them as evidence of third-party violations of the PPO and harassment.
- Reiterate the relief you are seeking, focusing on LDW's best interests and the need for immediate intervention.

4. After the Hearing:

- File any additional documents or evidence that may be requested by the court.
- Continue to document all communications and interactions related to the case, ensuring that they can be submitted as future evidence if needed.

